

Consequently, because the Petition is uncertain and fails to state a cause of action based on a ministerial duty, the Demurrer must be sustained. If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The court previously granted leave one additional time to correct the instant pleadings.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2602451	RAINES VS DHSE INC., DBA MIRACLE SPRINGS RESORT & SPA	DEMURRER ON COMPLAINT OF MIA NODAL RAINES BY DHSE INC., DBA MIRACLE SPRINGS RESORT & SPA

Tentative Ruling: No tentative ruling. Hearing will be conducted on Thursday July 9, 2026 at 8:30 a.m. in Department PS2.